

Fundamental Rights - The Foundation Track

Chapter F1.3 — From Zero: What a Right Is, Who Is Bound by It, and Why EPFO Is "State"

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NOTE · HOW TO USE THIS DOCUMENT

The longest and most important chapter in the Foundation track for Module 1, and the one with the closest connection to the post you are applying for. Part III generates more questions than any other portion of the Constitution. It also contains Article 12, which defines "State" - and the reason EPFO is amenable to writ jurisdiction, which is to say the reason your future orders can be challenged in a High Court. It contains Article 23, under which paying below the minimum wage has been held to be forced labour, and Article 24 on child labour, which was asked directly in 2023. Study time 8 hours across nine sessions. Do not rush this chapter.

This is the FOUNDATION layer - it teaches from first principles. The COMPACT Chapter 1.3 covers the same ground in half the space and is your revision text for the final six weeks. Case law is stated for the principle it establishes, not as a substitute for the bare Articles.

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0. Why This Is the Chapter That Matters Most

If you learn only one chapter of polity properly, learn this one. It carries the most marks and it is the one an interview board will use to test whether you understand your own future powers.

STUDY SESSION · CHAPTER F1.3 - THE NINE SESSIONS

- 1 **Session 1** - What a right is, why Part III exists, and **Article 12** - the definition of "State" (Section 1). Contains the EPFO point
- 2 **Session 2 - Article 13**, judicial review, and the three doctrines (Section 2)
- 3 **Session 3 - Article 14** equality, and reasonable classification (Section 3)
- 4 **Session 4 - Articles 15 and 16** - discrimination and public employment. Article 16 is the Article your own recruitment rests on (Section 4)
- 5 **Session 5 - Articles 17, 18 and 19** - untouchability, titles, and the six freedoms (Section 5)
- 6 **Session 6 - Articles 20, 21, 21A and 22** - life, liberty and the roots of natural justice (Section 6)
- 7 **Session 7 - Articles 23 and 24** - forced labour and child labour. The most job-relevant Articles in Part III (Section 7)
- 8 **Session 8 - Articles 25 to 30** - religion, culture and minorities (Section 8)
- 9 **Session 9 - Article 32 and the five writs**, plus restriction and suspension (Sections 9 and 10)

Then **45 graded questions** in Section 11. Budget **eleven sessions** in total - about **five and a half days** at two hours a day. This is the largest single investment in the Foundation track, and it is the right place to spend it.

1. Session 1 - What a Right Is, and Who Is Bound



Before the list of rights, two questions: what makes a right "fundamental", and against whom can you assert it? The second question is Article 12, and it is where your job enters constitutional law.

1.1 What makes a right "fundamental"

An ordinary **legal right** is given by an ordinary law, and can be taken away by amending that ordinary law. A **fundamental right** is guaranteed by the **Constitution** itself. Three consequences follow, and all three are examinable:

- 1 It is **enforceable against the State** directly, and the Supreme Court can be approached for that purpose under **Article 32**
- 2 An ordinary law that violates it is **void** - this is **Article 13**
- 3 It can be curtailed only in the ways the Constitution itself permits - by **reasonable restrictions** where the Article allows them, or by **amendment**, which since *Kesavananda* cannot destroy the basic structure

JARGON DECODER · JUSTICIABLE AND NON-JUSTICIABLE - THE DISTINCTION THAT SEPARATES PART III FROM PART IV

- **Justiciable** means **enforceable by a court**. You can sue on it. **Part III Fundamental Rights are justiciable**
- **Non-justiciable** means it is a genuine constitutional obligation but **cannot be enforced by a court**. **Part IV Directive Principles are non-justiciable** - Article 37 says so expressly

This is the single most examined contrast in the whole of polity. Note carefully what non-justiciable does **not** mean: it does **not** mean unimportant, and it does **not** mean legally irrelevant. The Directive Principles in **Articles 39, 41, 42 and 43** are the constitutional source of every labour and social security statute you will administer - and Parliament acted on them precisely because they are obligations, even though no citizen could have sued to compel it.

WHY THIS EXISTS · WHY PART III IS WRITTEN AS A SET OF PROHIBITIONS

Read the actual language of the Articles and you will notice something. Article 14 does not say "citizens shall have equality". It says "**the State shall not deny** to any person equality before the law". Article 15 says "**the State shall not discriminate**". Article 21 says "**no person shall be deprived** of life or personal liberty except according to procedure established by law".

Part III is drafted as a list of things **the State may not do**. That is what a fundamental right is in structure: a **limitation on State power**, not a gift to the citizen.

Two things follow, and both are exam points. First, you must know **who counts as the State** - hence Article 12. Second, fundamental rights are generally **not available against private individuals**, with a few deliberate exceptions where the Constitution chose to bind everybody: **Article 17** untouchability, **Article 23** trafficking and forced labour, and **Article 24** child labour. Those three are enforceable against private persons as well, and that is exactly why they matter in labour law.

1.2 Article 12 - the definition of "State"

Here is the provision that connects this chapter to your career. **Article 12** says that unless the context otherwise requires, "the State" includes:

- 1 The **Government and Parliament of India** - the Union executive and legislature
- 2 The **Government and the Legislature of each of the States** - the State executive and legislature
- 3 **All local authorities** within the territory of India - municipalities, panchayats, district boards, improvement trusts
- 4 **All other authorities** within the territory of India, or under the control of the Government of India

The first three limbs are straightforward. All the litigation, and all the exam questions, concern the fourth: "**other authorities**".

1.3 "Other authorities" - how the courts widened it, and where EPFO sits

Follow the sequence. Each case widens or refines the test.

- 1 **Rajasthan State Electricity Board v Mohan Lal (1967)** - "other authorities" is not confined to bodies performing governmental functions. A **statutory authority** created by a statute and endowed with power falls within Article 12
- 2 **Sukhdev Singh v Bhagatram (1975)** - statutory corporations such as **ONGC, LIC** and the **Industrial Finance Corporation** are "State"
- 3 **Ajay Hasia (1981)** - the important one. The Court laid down an **instrumentality or agency test**, looking at factors such as whether the entire **share capital** is held by Government, whether it enjoys a **monopoly** status conferred by the State, whether its functions are of **public importance** and closely related to **governmental functions**, and the extent of **financial, functional and administrative control**. Crucially, the Court held that it does **not matter** whether the body was created **by a statute** or **under a statute** - a registered society could still be "State"
- 4 **Pradeep Kumar Biswas (2002)** - a seven-judge bench refined the test to whether the body is **financially, functionally and administratively dominated by, or under the control of, the Government** - and that control must be **pervasive**, not merely regulatory
- 5 **Zee Telefilms (2005)** - applying that test, the **Board of Control for Cricket in India was held NOT to be "State"**, because Government control over it was not pervasive. A very common exam distractor

MUST MASTER · WHERE EPFO FITS - AND WHY THIS IS THE MOST JOB-RELEVANT PARAGRAPH IN THE CHAPTER

The **Employees' Provident Fund Organisation** is a **statutory body** - it exists under the **EPF & MP Act, 1952**, an Act of Parliament. Its Central Board is a statutory authority. It is financially, functionally and administratively under the control of the Government of India, through the **Ministry of Labour and Employment**. It exercises **statutory and quasi-judicial powers** over the public, including the **Section 7A** power to determine dues.

On every limb of the *Ajay Hasia* and *Pradeep Kumar Biswas* tests, EPFO answers the description of "**other authorities**" under Article 12. That is why writ petitions against EPFO are routinely entertained by the High Courts, and why EPFO's orders are challenged under **Article 226**.

Now hold on to what that means for you personally. Because EPFO is "State":

- 1 Your orders must satisfy **Article 14** - they must not be arbitrary or discriminatory
- 2 Your procedure must satisfy **Article 21** - fair, just and reasonable, which is where **natural justice** comes from
- 3 Your decisions are subject to **judicial review** by a High Court under **Article 226**, and can be quashed by a writ of **certiorari**
- 4 You cannot rely on the excuse that EPFO is merely an autonomous fund and not the Government. Constitutionally, for the purposes of Part III, **it is the State**

If an interview board asks you a single question to test whether you understand your own office, this is the question. The answer is: **an APFC exercises statutory quasi-judicial power on behalf of an authority that is "State" under Article 12, and is therefore bound by Articles 14 and 21 and answerable under Article 226.**

COMMON UPSC TRAP · IS THE JUDICIARY 'STATE' UNDER ARTICLE 12?

A classic fine distinction.

- In its **judicial** functions - deciding cases - the judiciary is generally **not** treated as "State" for Article 12 purposes, so a judicial order is not ordinarily challenged as violating a fundamental right
- In its **administrative and rule-making** functions - appointing staff, framing rules on its administrative side - the judiciary **is** "State"

So the answer to "is the judiciary State?" is **"it depends on which hat it is wearing"**. That is the answer the exam wants.

CHECK YOURSELF · SESSION 1

- 1 Give three consequences of a right being fundamental rather than merely legal
- 2 Distinguish justiciable from non-justiciable, and say which Article makes Part IV non-justiciable
- 3 Why is Part III drafted as a set of prohibitions? Name the three Articles enforceable against private persons too
- 4 List the four limbs of Article 12
- 5 State the *Pradeep Kumar Biswas* test. Which sporting body was held **not** to be State, and why?
- 6 Explain, in three sentences, why EPFO is "State" and what three practical consequences follow for an APFC

2. Session 2 - Article 13 and Judicial Review ★★★★★

Article 12 tells you who is bound. Article 13 tells you what happens to a law that breaks the rules.

2.1 The four clauses of Article 13

- 1 **13(1)** - all **pre-constitutional** laws, so far as they are **inconsistent** with Part III, are **void** to the extent of the inconsistency
- 2 **13(2)** - the State shall make no **future** law that takes away or abridges Part III rights, and any such law is void to the extent of the contravention
- 3 **13(3)** - defines "**law**" very widely: it includes an **ordinance, order, bye-law, rule, regulation, notification, and custom or usage** having the force of law
- 4 **13(4)** - inserted by the **24th Amendment, 1971**: a **constitutional amendment** is **not** "law" for the purposes of Article 13

IN PLAIN ENGLISH · WHY 13(3) MATTERS TO AN ADMINISTRATOR

Look again at the list in 13(3): rule, regulation, notification, order, bye-law. That is the whole of **rung 3 and rung 4** of the ladder you learned in Chapter F1.1.

So a **Scheme** framed under the EPF & MP Act, a **notification** raising a wage ceiling, a **circular** with the force of law - every one of them is "law" for Article 13 purposes and every one can be struck down for violating a fundamental right. Administrative instruments are not immune because they are administrative.

And note the inclusion of **custom or usage**. That is how discriminatory social practices with no statutory basis were brought within the reach of Part III.

WHY THIS EXISTS · WHY 13(4) EXISTS, AND HOW IT CONNECTS TO CHAPTER F1.1

You have already met this. **Golaknath (1967)** held that a constitutional amendment **was** "law" under Article 13, and therefore could not abridge fundamental rights. Parliament's response was the **24th Amendment, 1971**, which inserted **13(4)** to say expressly that an amendment is **not** "law".

Kesavananda (1973) upheld 13(4) - so an amendment is indeed not caught by Article 13 - but held that the amending power is nonetheless limited by the **basic structure**. So the restriction moved: it is no longer Article 13 that limits amendments, it is the basic structure doctrine.

If you can narrate that in three sentences, you have understood the relationship between Articles 13 and 368, which is one of the most testable ideas in the subject.

2.2 The three doctrines

Doctrine	What it means
Eclipse	A pre-constitutional law inconsistent with a fundamental right is not dead - it is overshadowed , and remains dormant. If the fundamental right is later amended so the inconsistency disappears, the law revives and becomes operative again. The shadow lifts. Applies mainly to pre-1950 laws
Severability	Where only part of a law is unconstitutional, the court strikes down only that part , provided the offending portion can be separated without destroying the rest. Also called separability
Waiver	A person cannot waive a fundamental right. Fundamental rights were conferred in the public interest , not merely for individual benefit, so an individual cannot contract out of them - Bheshwar Nath v CIT (1959)

Three doctrines flowing from Article 13 - all three are directly examinable

FROM YOUR OWN WORLD · WAIVER, IN BANKING TERMS - AND WHY IT MATTERS IN LABOUR LAW

In banking you routinely take a waiver of a contractual right - a borrower waives notice, a customer waives a claim. That is possible because those are **contractual** rights held for the party's own benefit.

A fundamental right cannot be waived, because it is not held purely for your benefit - it exists in the public interest. So a **contract in which a worker "agrees" to give up a constitutional or statutory protection is worthless.**

That principle runs straight through labour law. An employee cannot validly agree to be paid below the minimum wage; an agreement to forgo provident fund coverage does not remove liability; a settlement in which a worker waives statutory benefits is not binding. When you meet an employer who produces a signed consent letter from workers, this doctrine is your answer.

CHECK YOURSELF · SESSION 2

- 1 State clauses 13(1) and 13(2), and say what distinguishes them
- 2 List six things included in the definition of "law" under 13(3). Why does that matter for a Scheme or a notification?
- 3 Which amendment inserted 13(4), why, and what did *Kesavananda* do with it?
- 4 Define eclipse, severability and waiver. Which case established that fundamental rights cannot be waived?
- 5 Why can a worker not validly agree to forgo a statutory protection?

3. Session 3 - Article 14: Equality ★★★★★

Article 14 is the most litigated Article in the Constitution and the foundation of every claim that an official acted unfairly. As a quasi-judicial officer you will be measured against it constantly.

3.1 The two limbs, and their different ancestry

Article 14: "The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India."

Two distinct guarantees, from two different traditions:

	Equality before the law	Equal protection of the laws
Origin	British	American
Nature	Negative - an absence of privilege	Positive - a positive obligation
Meaning	No person is above the law; all are equally subject to the ordinary law of the land	Like should be treated alike; equal treatment in equal circumstances
Implication	Absence of special privilege	Permits, and may require, reasonable classification

Note that Article 14 uses the word "**person**", not "citizen" - so it protects **aliens** and also **legal persons** such as companies.

3.2 Reasonable classification - the test you must be able to state

Equality does not mean treating everyone identically. It means not treating **like cases** differently. So the State **may** classify - but the classification must pass a **two-part test**:

- 1 It must be founded on an **intelligible differentia** - a real, identifiable distinction between those inside the class and those outside it
- 2 That differentia must have a **rational nexus** with the **object** the law seeks to achieve

WORKED EXAMPLE · APPLYING THE TEST TO A RULE YOU WILL ACTUALLY ADMINISTER

Take the **EPF & MP Act** threshold: the Act applies to establishments employing **20 or more** persons, and to certain co-operative societies working without power at **50 or more**. A smaller establishment escapes coverage. Is that a denial of equality to the workers in the smaller establishment?

Apply the test.

- 1 **Intelligible differentia?** Yes. Number of employees is an objective, verifiable, non-arbitrary criterion. There is nothing vague about "20 or more"
- 2 **Rational nexus with the object?** The object is workable social security administration. Very small establishments have limited administrative capacity and the compliance cost per worker is high; a threshold allows the scheme to be enforced effectively where it will reach the most workers. So yes, the classification serves the object

The classification therefore survives Article 14. **Now change the facts.** Suppose an officer applied the Act to one establishment of 22 workers and, for no stated reason, not to an identical neighbouring establishment of 22 workers. There is no differentia at all - only inconsistency. **That** violates Article 14, and it is the kind of failure that gets an order quashed. The lesson is that Article 14 does not attack thresholds; it attacks **unexplained differences in treatment**.

3.3 The doctrine of arbitrariness - the modern expansion

Classification was the old test. A second, broader principle was then added:

- 1 **E. P. Royappa (1974)** - equality and arbitrariness are "sworn enemies". State action that is arbitrary is by that fact unequal, and therefore violates Article 14
- 2 **Maneka Gandhi (1978)** - carried the principle forward: Article 14 strikes at **arbitrariness** in State action, and requires **fairness and reasonableness**

MUST MASTER · WHY THE ARBITRARINESS DOCTRINE IS THE SINGLE MOST IMPORTANT IDEA FOR YOUR FUTURE ORDERS

Under the classification test alone, an officer could defend almost anything by inventing a category. The arbitrariness doctrine closes that gap: **State action must be reasonable, and must be capable of being justified by reasons.**

For you, this converts into concrete duties in every Section 7A inquiry:

- 1 **Give reasons.** An order that states a conclusion without reasoning is arbitrary on its face. This is the commonest ground on which departmental orders are set aside
- 2 **Be consistent.** Treat comparable establishments comparably, or explain on the record why they differ
- 3 **Follow your own procedure.** An authority that departs from its own settled practice without explanation acts arbitrarily
- 4 **Hear before deciding.** Natural justice comes from Articles 14 and 21 together

Every one of those four is Article 14 in operation. This is why a Provident Fund officer studies constitutional law.

KNOW · EXCEPTIONS TO EQUALITY BEFORE THE LAW

A short, examinable list of persons who enjoy immunities.

- **Article 361** - the **President** and **Governors** are not answerable to any court for the exercise of their official powers, and no criminal proceedings may be instituted against them during their term of office
- **Article 105 and Article 194** - **parliamentary and legislative privileges**; no member is liable in any court for anything said or any vote given in the House
- **Foreign diplomats and sovereigns** enjoy immunity under international law
- **UNO and its agencies** enjoy diplomatic immunity

CHECK YOURSELF · SESSION 3

- 1 Name the two limbs of Article 14, their origin, and which is negative and which positive
- 2 Does Article 14 protect aliens? Companies? How do you know from the text?
- 3 State the two-part test of reasonable classification
- 4 Apply the test to the 20-employee threshold under the EPF & MP Act
- 5 Which two cases established the arbitrariness doctrine, and what four duties does it impose on you as a quasi-judicial officer?
- 6 Name three categories of exception to equality before the law, with Article numbers

4. Session 4 - Articles 15 and 16 ★★★★★

Article 16 is the provision under which you are being recruited. It deserves close attention for that reason alone.

4.1 Article 15 - prohibition of discrimination

Article 15(1) forbids the State from discriminating against any **citizen** on grounds **only** of:

- 1 **Religion**
- 2 **Race**
- 3 **Caste**
- 4 **Sex**
- 5 **Place of birth**

Five grounds. Learn them exactly - questions add "descent", "residence" or "language" as distractors, none of which is in the list.

COMMON UPSC TRAP · TWO WORDS IN ARTICLE 15 THAT DECIDE QUESTIONS

- 1 **"Citizen"** - unlike Article 14, which says "person", Article 15 protects **citizens only**. An alien cannot invoke it
- 2 **"Only"** - the discrimination must be on those grounds **and nothing else**. If the classification rests on a permissible ground in combination with something else relevant, it may survive. This little word has done a great deal of work in the case law

The exceptions - each added for a purpose, and each examinable:

Clause	What it permits
15(3)	Special provision for women and children
15(4)	Special provision for socially and educationally backward classes, SCs and STs . Added by the 1st Amendment, 1951
15(5)	Reservation in educational institutions , including private ones, for backward classes, SCs and STs. Added by the 93rd Amendment, 2005
15(6)	Special provision, including reservation up to 10% , for economically weaker sections . Added by the 103rd Amendment, 2019

4.2 Article 16 - equality of opportunity in public employment

Article 16(1) guarantees equality of opportunity in matters relating to **employment or appointment to any office under the State**. **Article 16(2)** forbids discrimination on grounds of religion, race, caste, sex, **descent**, **place of birth**, **residence** or any of them.

BEGINNER MISTAKE · ARTICLE 15 HAS FIVE GROUNDS; ARTICLE 16 HAS SEVEN

This is a favourite trap and beginners fall into it every time.

- **Article 15(1)** - religion, race, caste, sex, place of birth. **FIVE**
- **Article 16(2)** - religion, race, caste, sex, **descent**, place of birth, **residence**. **SEVEN**

Article 16 adds **descent** and **residence**. Remember it as: employment discrimination has **two extra grounds**, because ancestry and where you live were the two historical devices used to exclude people from public office.

The exceptions to Article 16, which is where most questions sit:

Clause	What it permits
16(3)	Parliament may prescribe residence within a State or Union Territory as a condition for certain public employment
16(4)	Reservation of appointments for any backward class not adequately represented in the services
16(4A)	Reservation in promotion for SCs and STs . Added by the 77th Amendment, 1995
16(4B)	Carrying forward of unfilled reserved vacancies , so that the backlog is not counted against the ceiling of the year in which it is filled. Added by the 81st Amendment, 2000
16(5)	Offices connected with a religious or denominational institution may be reserved for persons professing that religion
16(6)	Reservation up to 10% for economically weaker sections . Added by the 103rd Amendment, 2019

MUST MASTER · INDRA SAWHNEY (1992) - THE MANDAL CASE, AND THE TWO RULES IT PRODUCED

The most examined judgment in this area. Two holdings you must know:

- 1 **A ceiling of 50%** on total reservation, save in extraordinary circumstances
- 2 The **creamy layer** must be **excluded** from OBC reservation - the socially advanced among the backward classes cannot take the benefit

Note precisely: the creamy layer principle was applied to **OBCs**. Its extension in relation to **SCs and STs** in promotions has its own separate line of cases, and a question that asserts flatly that creamy layer applies identically to SC and ST reservation should be treated with suspicion.

Also note that **Article 16(4A) and 16(4B)** were inserted by Parliament to overcome judicial decisions restricting reservation in promotion and the carry-forward of vacancies. That pattern - a judgment, then an amendment responding to it - is the shape of the entire reservation story, exactly as it was for Articles 13 and 368.

WHY THIS EXISTS · READ ARTICLE 16 AS YOUR OWN APPOINTMENT LETTER

The post of Assistant Provident Fund Commissioner is an "office under the State". So **Article 16(1)** is why the recruitment must be by open competition on merit, **Article 16(2)** is why you cannot be excluded for your religion or your home State, **Article 16(4)** is why the vacancies carry reserved categories, and **Article 335** requires that the claims of SCs and STs be considered consistently with the maintenance of efficiency of administration.

An interview board will find it striking if you can explain the constitutional basis of the very selection process you are sitting in.

CHECK YOURSELF · SESSION 4

- 1 List the five grounds in Article 15(1) and the seven in Article 16(2). Which two does Article 16 add?
- 2 Which word in Article 15(1) limits it to citizens? Which word requires the discrimination to rest on those grounds alone?
- 3 Match each exception to its amendment: 15(4), 15(5), 15(6), 16(4A), 16(4B), 16(6)
- 4 State the two holdings of *Indra Sawhney*
- 5 Which Article requires SC and ST claims to be considered consistently with administrative efficiency?

5. Session 5 - Articles 17, 18 and 19 ★★★★★

5.1 Article 17 - abolition of untouchability

Untouchability is abolished and its practice in any form is **forbidden**. Enforcing any disability arising out of untouchability is a **punishable offence**.

Three points that get asked:

- 1 It is one of the few Articles enforceable against **private individuals**, not just the State
- 2 The Constitution does **not define** "untouchability" - deliberately, so that the prohibition is not narrowed by definition
- 3 It is given effect by the **Protection of Civil Rights Act, 1955** (originally the Untouchability Offences Act, 1955), and reinforced by the **Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989**
- 4 The right under Article 17 is **absolute** - no reasonable restrictions attach to it

5.2 Article 18 - abolition of titles

- 1 The State shall confer no **title**, except a **military** or **academic** distinction
- 2 A citizen may not **accept** any title from a **foreign State**
- 3 A foreigner holding office of profit or trust under the State may not accept a foreign title without the President's consent
- 4 No person holding office of profit or trust under the State may accept a **present, emolument or office** from a foreign State without the President's consent

COMMON UPSC TRAP · ARE THE PADMA AWARDS AND BHARAT RATNA 'TITLES'?

No. In **Balaji Raghavan (1996)** the Supreme Court held that national awards such as the **Bharat Ratna** and the **Padma** awards are **not "titles"** within Article 18, because they are decorations recognising merit and are **not to be used as prefixes or suffixes** to the recipient's name. If they are so used, the award may be withdrawn.

So the correct formulation is: national awards are constitutional **provided they are not appended to the name**. That nuance is what the question tests.

5.3 Article 19 - the six freedoms

Article 19(1) guarantees to all **citizens** six freedoms:

Clause	Freedom	Grounds of reasonable restriction
19(1)(a)	Speech and expression	19(2) - sovereignty and integrity of India, security of the State, friendly relations with foreign States, public order, decency or morality, contempt of court, defamation, incitement to an offence
19(1)(b)	Assembly, peaceably and without arms	19(3) - sovereignty and integrity, public order
19(1)(c)	Association or unions, including co-operative societies	19(4) - sovereignty and integrity, public order, morality
19(1)(d)	Movement throughout the territory of India	19(5) - interests of the general public, protection of the interests of any Scheduled Tribe
19(1)(e)	Residence and settlement in any part of India	19(5) - as above

Clause	Freedom	Grounds of reasonable restriction
19(1)(g)	Profession, occupation, trade or business	19(6) - interests of the general public; the State may prescribe professional or technical qualifications , and may carry on any trade itself or through a corporation, to the exclusion of citizens

The six freedoms and the grounds on which each may be restricted

MUST MASTER · THREE EXAMINED FACTS ABOUT ARTICLE 19

- 1 **There were originally SEVEN freedoms.** The **right to property** was **19(1)(f)**. It was **deleted by the 44th Amendment, 1978** and property became an ordinary legal right under **Article 300A**. This is why the list jumps from (e) to (g) - there is no (f). That gap in the lettering is itself a favourite question
- 2 **Article 19 belongs to CITIZENS only** - not to aliens, and not to companies as such
- 3 **Article 19(1)(c) is the constitutional basis of trade unions.** The words "including co-operative societies" were added by the **97th Amendment, 2011**

WHY THIS EXISTS · ARTICLE 19(1)(C) AND THE RIGHT TO STRIKE - A POINT YOU MUST GET RIGHT

The freedom of **association** protects the right to **form** trade unions. But the courts have consistently held that the **right to strike is NOT a fundamental right**. It is a **statutory** right, regulated by industrial relations legislation - and therefore subject to the conditions that legislation imposes, such as notice requirements in public utility services and the prohibition of strikes during conciliation and adjudication.

The 2023 paper asked about the nature of the right to strike. The answer is that forming a union is a **fundamental right under 19(1)(c)**; striking is a **statutory right** with statutory limits. If you blur those two, you lose the mark - and you also misunderstand a distinction you will apply in practice.

JARGON DECODER · WHAT MAKES A RESTRICTION 'REASONABLE'

Every restriction under Article 19 must be **reasonable**, and reasonableness is decided by the **courts**, not the legislature. The tests the courts apply:

- There must be a **rational connection** between the restriction and the object
- The restriction must not be **excessive** - it must be **proportionate**, going no further than necessary
- It must be **procedurally fair**
- It must fall within the **specific grounds** listed in the relevant clause. A restriction on speech for a reason **not** listed in 19(2) is invalid however sensible it may seem

That last point is important and counter-intuitive: the grounds are a **closed list**.

CHECK YOURSELF · SESSION 5

- 1 Why does Article 19 have no clause (f)? What happened to it, and what replaced it?
- 2 Name the six freedoms and their clause letters
- 3 State the eight grounds of restriction under 19(2)
- 4 Is the right to strike a fundamental right? What is it, and where does the freedom to form a union come from?
- 5 Is the Bharat Ratna a "title" under Article 18? Give the case and the reasoning
- 6 Name the four tests of a reasonable restriction

6. Session 6 - Articles 20, 21, 21A and 22 ★★★★★

Article 21 is the most expansively interpreted provision in the Constitution, and the source of the procedural duties you will be held to.

6.1 Article 20 - protection in respect of conviction

Three distinct protections, and all three are available to **all persons**, including aliens and companies.

- 1 **20(1) - no ex post facto criminal law.** No person may be convicted of an act that was not an offence when it was committed, nor subjected to a penalty **greater** than that in force at the time. Note two limits: it applies to **criminal** law only, not civil or tax law, and it bars **retrospective conviction and enhanced penalty**, not retrospective **benefit** - a reduction in penalty may be applied retrospectively
- 2 **20(2) - no double jeopardy.** No person shall be **prosecuted and punished** for the **same offence twice**. Note the wording: it protects against a second **prosecution and punishment**, and applies to proceedings before a **court or judicial tribunal** - so a departmental disciplinary proceeding following a criminal trial is generally **not** barred
- 3 **20(3) - no self-incrimination.** No person **accused of an offence** shall be **compelled** to be a witness **against himself**. Three conditions: the person must be **accused**, the evidence must be **compelled**, and it must be **against himself**. It covers **testimonial** compulsion, not the giving of fingerprints, specimen handwriting or physical evidence

BEGINNER MISTAKE · DOUBLE JEOPARDY - THE LIMITATION BEGINNERS MISS

Article 20(2) does **not** prevent a **departmental inquiry** after a criminal case, nor does it bar a **civil or recovery** proceeding alongside prosecution. It bars a second **prosecution and punishment for the same offence** before a court or judicial tribunal.

This matters directly in your work: an employer may face **prosecution** for default and, separately, **recovery proceedings and damages under Section 14B** of the EPF & MP Act. Those are not the same offence being punished twice - they are different proceedings with different purposes. An employer who pleads double jeopardy against a recovery action is wrong, and you should know why.

6.2 Article 21 - life and personal liberty

Article 21: "No person shall be deprived of his **life** or **personal liberty** except according to **procedure established by law**."

Twenty-two words that have generated more law than the rest of Part III combined. The transformation happened in two steps:

- 1 **A. K. Gopalan (1950)** - a narrow reading. "Procedure established by law" meant simply that if a valid law prescribed a procedure, that was enough. The procedure did not have to be fair
- 2 **Maneka Gandhi (1978)** - the turning point. The Court held that the procedure must be **fair, just and reasonable**, not arbitrary or oppressive. Article 21 was read **together with Articles 14 and 19**, so that a law depriving a person of liberty must satisfy all of them

MUST MASTER · MANEKA GANDHI IS THE CASE THAT GOVERNS YOUR PROFESSIONAL CONDUCT

Before 1978, "procedure established by law" meant any procedure a statute laid down. After 1978, it means a procedure that is **fair, just and reasonable**.

This is where **natural justice** enters Indian administrative law with constitutional force. Its two classical components:

1 **Audi alteram partem** - "hear the other side". Notice of what is alleged, and a genuine opportunity to answer

2 **Nemo judex in causa sua** - "no one may be a judge in his own cause". The rule against bias Both bind you in every **Section 7A** inquiry. An order passed without giving the employer notice and a hearing is not merely bad departmental practice - it is unconstitutional, and a High Court will quash it under **Article 226** by a writ of **certiorari**. So will an order passed by an officer with a personal interest in the outcome.

If you take one sentence from this chapter into your working life, take this one: **your statutory power is real, but the procedure by which you exercise it is constitutionally controlled.**

KNOW · RIGHTS READ INTO ARTICLE 21 - THE EXPANSION

The courts have derived a long list of rights from Article 21. The most examined:

- **Right to privacy - K. S. Puttaswamy (2017)**, a nine-judge bench, holding privacy to be a fundamental right intrinsic to life and liberty
- **Right to live with human dignity**
- **Right to livelihood** - which is why arbitrary deprivation of a means of living engages Article 21
- **Right to a speedy trial**, and to **free legal aid**
- **Right to a clean and healthy environment**
- **Right to shelter**, to **health and medical care**, to **food**
- **Right against solitary confinement** and against handcuffing as a routine measure
- **Right to fair procedure** in administrative action, as above

6.3 Article 21A - right to education

Inserted by the **86th Amendment, 2002**. The State shall provide **free and compulsory education** to all children of the age of **six to fourteen** years.

Three linked changes made by the same amendment, and questions often test whether you know all three:

- 1 **Article 21A** - the new fundamental right
- 2 **Article 45** was **amended** to direct the State to provide **early childhood care and education** for children **below six** years
- 3 **Article 51A(k)** - a new **fundamental duty** on a parent or guardian to provide opportunities for education to a child between **six and fourteen**. This is the **eleventh** fundamental duty

Given effect by the **Right of Children to Free and Compulsory Education Act, 2009** - which the 2015 paper asked about directly.

6.4 Article 22 - protection against arrest and detention

Article 22 has two halves, and the whole trick is to see that they say **opposite** things.

The first half - ordinary or punitive arrest. A person arrested must:

- 1 Be **informed of the grounds** of arrest
- 2 Be allowed to **consult and be defended by a legal practitioner**
- 3 Be **produced before the nearest magistrate within 24 hours**, excluding the time necessary for the journey
- 4 Not be detained beyond 24 hours without the authority of a magistrate

The second half - preventive detention. Here those protections do **not** apply. Preventive detention means detaining a person **without trial**, not for an offence committed but to **prevent** an apprehended one.

- 1 Detention beyond **three months** requires the opinion of an **Advisory Board**
- 2 The detained person must be informed of the **grounds** of detention, and given the earliest opportunity to make a **representation** - but the authority may **refuse to disclose facts** it considers against the public interest
- 3 **Article 22(3)** expressly excludes the first-half protections for **enemy aliens** and for persons detained under a preventive detention law

COMMON UPSC TRAP · THE 44TH AMENDMENT POINT THAT CATCHES ALMOST EVERYONE

The **44th Amendment, 1978** sought to reduce the period of preventive detention without the opinion of an Advisory Board from **three months to two months**. That provision **was never brought into force**.

So the operative period remains **three months**. If a question asks the period under the Constitution as it operates, the answer is **three months**; if it asks what the 44th Amendment provided, the answer is **two months, not yet in force**. Read the stem carefully - this is exactly the "passed versus in force" distinction from Chapter F1.1, appearing again.

CHECK YOURSELF · SESSION 6

- 1 State the three protections in Article 20. Which of them applies only to criminal law?
- 2 Why is a departmental inquiry after a criminal trial not double jeopardy? Give the EPF example
- 3 Contrast *A. K. Gopalan* with *Maneka Gandhi*. What did "procedure established by law" come to mean?
- 4 Name and translate the two rules of natural justice, and say which Articles they come from
- 5 Which amendment inserted Article 21A, and what two other changes did it make?
- 6 Give the 24-hour rule and say why it does not apply to preventive detention. What is the operative maximum before an Advisory Board must opine, and what did the 44th Amendment try to make it?

7. Session 7 - Articles 23 and 24: The Most Job-Relevant Articles in Part III ★★★★★

Two Articles, both enforceable against private persons, both about labour. If you are asked in an interview to connect the Constitution to your work, this section and Article 12 are your material.

7.1 Article 23 - traffic in human beings and forced labour

Article 23(1) prohibits **traffic in human beings, begar**, and other similar forms of **forced labour**. Contravention is an offence punishable by law.

Article 23(2) permits an exception: the State may impose **compulsory service for public purposes** - and such service is not forced labour. Compulsory military or social service would fall here. But the State may not discriminate in imposing it on grounds only of religion, race, caste or class.

Note the scope: Article 23 is available against **the State and private persons alike**, and it protects **all persons**, citizens and non-citizens.

MUST MASTER · PAYING BELOW THE MINIMUM WAGE IS FORCED LABOUR - THE CASE THAT CHANGED LABOUR LAW

People's Union for Democratic Rights v Union of India (1982) - the Asiad Workers case.

Workers building facilities for the Asian Games were being paid below the statutory minimum wage.

The Supreme Court held that "**forced labour**" is **not confined to physical force**. Where a person is compelled by **economic circumstances** to provide labour for **less than the minimum wage**, the labour is not truly voluntary - and therefore amounts to **forced labour** within Article 23.

Understand how large that holding is. It converts a **statutory** wage floor into a **constitutional** guarantee. A failure to pay the minimum wage is not merely a breach of the Minimum Wages Act; it is a violation of a **fundamental right**, enforceable by writ.

Two further consequences you should be able to state:

- 1 Because Article 23 binds **private employers**, the worker's remedy is not confined to the statutory machinery
- 2 The reasoning explains why **consent is no defence** in wage law. An employer who says the workers "agreed" to lower wages has conceded the point - economic compulsion is exactly what Article 23 addresses. Notice that this is the **doctrine of waiver** from Session 2, arriving from a different direction

KNOW · THE STATUTES GIVING EFFECT TO ARTICLE 23

- **Bonded Labour System (Abolition) Act, 1976**
- **Immoral Traffic (Prevention) Act, 1956**
- **Minimum Wages Act, 1948**, now subsumed within the **Code on Wages, 2019**
- **Transplantation of Human Organs Act, 1994**

7.2 Article 24 - prohibition of child labour

Article 24: "No child below the age of **fourteen years** shall be employed to work in any **factory** or **mine** or engaged in any other **hazardous employment**."

This Article was asked directly in the 2023 paper, in the form "which Article prohibits employment of children". The answer is **Article 24**, and the commonest wrong answers are Article 23, Article 39 and Article 45 - so be able to distinguish all four:

Provision	Part	What it actually says
Article 23	III, justiciable	Prohibits trafficking and forced labour - all persons, not specifically children
Article 24	III, justiciable	Prohibits employment of children below 14 in a factory, mine or hazardous employment
Article 39(e) and (f)	IV, non-justiciable	Directs the State to ensure that children are not abused and are given opportunities to develop healthily, and that childhood is protected against exploitation
Article 45	IV, non-justiciable	Now directs early childhood care and education below six , after the 86th Amendment moved 6-to-14 education into Article 21A

The four provisions about children - do not confuse them

BEGINNER MISTAKE · THE THREE-WAY DISTINCTION THAT DECIDES THE 2023-STYLE QUESTION

- 1 **Article 24 is a PROHIBITION and it is a fundamental right** - enforceable, including against a private employer
- 2 **Article 39 is a DIRECTIVE** - Part IV, non-justiciable, addressed to the State's policy
- 3 **Article 21A and Article 45 are about EDUCATION**, not employment - and the 86th Amendment split them at age six

If a question asks what **prohibits** child **employment**, it is **Article 24**. If it asks what **directs** the State on child **development**, it is **Article 39**. If it is about **schooling**, it is **21A** or **45**.

KNOW · THE STATUTORY FRAMEWORK, AND THE AGES THAT GO WITH IT

- **Child and Adolescent Labour (Prohibition and Regulation) Act, 1986**, as amended in **2016**. The amendment introduced the crucial two-tier structure: a **child** is a person below **14** and is **prohibited** from all occupations, save help in a family enterprise outside school hours and work as an artist; an **adolescent** is **14 to 18** and is prohibited from **hazardous** occupations only
- The **Factories Act, 1948** prohibits employment of a child below **14**, and regulates **adolescents** between 14 and 18 who require a **certificate of fitness**
- Under the **Occupational Safety, Health and Working Conditions Code, 2020**, these provisions have been recast

The two ages to hold: 14 for prohibition, 18 for hazardous work. That pair answers most questions in this area.

WHY THIS EXISTS · PUTTING SESSION 7 TOGETHER - THE CONSTITUTIONAL CHAIN OF YOUR JOB

You can now state the full chain, and this is the most valuable single answer in your interview preparation.

Article 23 makes payment below the minimum wage a constitutional wrong. **Article 24** prohibits child labour outright. **Articles 39, 41, 42 and 43** in Part IV direct the State to secure a living wage, provision for old age, sickness and disablement, maternity relief and just conditions of work. Those Directives are **non-justiciable**, so Parliament gave them effect by legislation - drawing its power from **Entry 23 and Entry 24 of the Concurrent List**. Among those statutes is the **EPF & MP Act, 1952**, which created **EPFO**. EPFO is an "**other authority**" and therefore "**State**" under **Article 12**, so its officers are bound by **Article 14** and by the fair-procedure requirement of **Article 21** as read in **Maneka Gandhi**, and their orders are reviewable by a High Court under **Article 226**.

That is one continuous argument from a Directive Principle to your own desk. Learn to say it in under a minute.

CHECK YOURSELF · SESSION 7

- 1 What three things does Article 23 prohibit? What does 23(2) permit?
- 2 State the holding in the Asiad Workers case and explain why paying below the minimum wage is forced labour
- 3 Why is a worker's "consent" to a lower wage no defence? Link it to the doctrine you learned in Session 2
- 4 Quote Article 24. Distinguish it from Articles 23, 39 and 45
- 5 Give the two key ages under the child labour framework and what each governs
- 6 Recite the constitutional chain from Article 39 to Article 226 in one minute

8. Session 8 - Articles 25 to 30 ★★★★★☆

8.1 Freedom of religion - Articles 25 to 28

Article	What it guarantees
25	Freedom of conscience and the right freely to profess, practise and propagate religion - subject to public order, morality, health, and the State's power to make laws on social welfare and reform and to regulate secular activity. Available to all persons
26	The right of every religious denomination to establish and maintain institutions, manage its own affairs in matters of religion, own and acquire property and administer it
27	No person may be compelled to pay taxes for the promotion or maintenance of any particular religion
28	No religious instruction in an educational institution wholly maintained out of State funds

COMMON UPSC TRAP · THREE FINE POINTS IN ARTICLES 25 TO 28

- 1 **"Propagate" does not include a right to convert another person by force, fraud or inducement.** It is a right to transmit and disseminate one's beliefs
- 2 **Article 27 speaks of TAXES, not FEES.** A fee charged for a service connected with a religious institution is permissible; a tax whose proceeds go to promote a particular religion is not
- 3 **Article 28 has a graded scheme.** Wholly State-funded - **no** religious instruction. State-recognised or State-aided - instruction permitted **with consent**. Established under an endowment or trust requiring religious instruction - permitted even if State-administered

8.2 Cultural and educational rights - Articles 29 and 30

- 1 **Article 29(1)** - any **section of citizens** has the right to conserve its **language, script or culture**. Note it says "section of citizens", so it is **not confined to minorities**
- 2 **Article 29(2)** - no citizen may be denied admission to a State-maintained or State-aided educational institution on grounds of **religion, race, caste or language**
- 3 **Article 30(1)** - all **minorities**, whether based on **religion or language**, have the right to **establish and administer** educational institutions of their choice
- 4 **Article 30(2)** - the State shall not discriminate against any educational institution in granting aid on the ground that it is under minority management

BEGINNER MISTAKE · ARTICLE 29 VERSUS ARTICLE 30 - THE DISTINCTION THE EXAM WANTS

- **Article 29** protects **any section of citizens** - majority or minority. It is about **conserving** language, script and culture
- **Article 30** protects **minorities only** - religious or linguistic. It is about **establishing and administering** educational institutions

So the common statement that "Articles 29 and 30 are minority rights" is only **half** right. Article 29(1) is available to **any** section of citizens, and that is precisely what a "not correct" question will test.

9. Session 9 - Article 32 and the Five Writs ★★★★★

A right without a remedy is a slogan. Article 32 is the remedy, and Ambedkar called it the soul of the Constitution.

9.1 Article 32 - the right to constitutional remedies

- 1 Article 32 guarantees the **right to move the Supreme Court** by appropriate proceedings for the **enforcement of Fundamental Rights**
- 2 The Supreme Court may issue **directions, orders or writs**, including the five named writs
- 3 **Article 32 is itself a Fundamental Right** - which is the point most often tested. It is not merely a procedural provision; the right to the remedy is itself guaranteed
- 4 It **cannot be suspended** except as provided by the Constitution during a **National Emergency** under Article 359
- 5 **Ambedkar** described Article 32 as "**the very soul of the Constitution and the very heart of it**"

MUST MASTER · ARTICLE 32 VERSUS ARTICLE 226 - A COMPARISON YOU WILL USE PROFESSIONALLY

	Article 32	Article 226
Which court	Supreme Court	High Courts
Purpose	Enforcement of Fundamental Rights only	Fundamental Rights and any other legal right
Is it a Fundamental Right?	Yes	No - it is a constitutional right
Discretion	The Court cannot refuse relief where a Fundamental Right is violated	Discretionary
Territorial reach	Whole of India	Within the High Court's jurisdiction, or where the cause of action arises
Scope	Narrower	Wider

Article 226 is the wider power - that is the single most examined line in this comparison, and it is counter-intuitive because the Supreme Court is the higher court.

And it is the practically important one for you: an employer aggrieved by a **Section 7A** order does not go to the Supreme Court under Article 32. He goes to the **High Court under Article 226**, seeking **certiorari** to quash the order - typically alleging that he was not heard, or that no reasons were given. Which is why Sessions 3 and 6 of this chapter are, quite literally, instructions on how to keep your own orders from being quashed.

9.2 The five writs

Writ	Literally	What it does, and against whom
Habeas corpus	"to have the body "	Orders the production of a detained person and their release if the detention is unlawful. Issued against both public authorities and private persons . The one writ available against a private party
Mandamus	"we command "	Commands a public official, corporation, tribunal or government to perform a public duty it has refused to perform. Not available against a private individual , against the President or a Governor , or against a chief justice acting judicially. Not available to enforce a discretionary power, or a purely contractual obligation
Prohibition	"to forbid "	Issued by a higher court to a lower court or tribunal to stop it exceeding its jurisdiction. PREVENTIVE - issued while proceedings are pending. Available only against judicial and quasi-judicial authorities
Certiorari	"to be certified "	Issued by a higher court to quash an order already passed by a lower court, tribunal or authority acting in excess of jurisdiction or in breach of natural justice. CURATIVE - issued after the decision. Now also available against administrative authorities affecting rights
Quo warrant	"by what authority "	Asks by what authority a person holds a public office , and ousts them if the holding is unlawful. Available only for a substantive public office of a permanent character, not a private or ministerial office. Notably, any interested person may seek it, not only an aggrieved party

The five writs - learn the literal meaning first, the rest follows

MEMORY TECHNIQUE · PROHIBITION VERSUS CERTIORARI - THE ONE PAIR EVERYONE CONFUSES

Both are issued by a higher court to a lower one. The difference is **timing**.

- 1 **Prohibition = PREVENT**. The case is still going on. "Stop, you have no jurisdiction."
- 2 **Certiorari = CURE or QUASH**. The order has already been passed. "Set that aside."

Two mnemonics: "**Prohibition prevents, Certiorari cancels**." And on availability: prohibition lies **only** against judicial and quasi-judicial bodies, whereas certiorari has been extended to **administrative** action as well - so certiorari is the **wider** of the two.

The third distinction worth carrying: **habeas corpus** is the only one of the five that runs against a **private** person.

WORKED EXAMPLE · WHICH WRIT? FOUR SCENARIOS FROM YOUR OWN FUTURE WORK

- 1 An APFC passes a Section 7A order **without hearing** the employer. The employer approaches the High Court. **Certiorari** - the order exists and must be quashed for breach of natural justice
- 2 An APFC **refuses to decide** a transfer claim at all, though a statutory duty to decide exists. **Mandamus** - commanding performance of a public duty. Note that mandamus compels the authority to **decide**, not to decide in a particular way
- 3 A tribunal begins hearing a matter that is **plainly outside its jurisdiction**, and proceedings are still pending. **Prohibition** - preventive
- 4 A person is **appointed to a statutory post without holding the prescribed qualification**. **Quo warrant** - and any interested person may apply

10. Restriction, Suspension and Amendability



- 1 **Article 33 - Parliament** may **restrict or abrogate** the fundamental rights of members of the **armed forces, forces charged with the maintenance of public order, intelligence** organisations and analogous services. Only Parliament may do this, and such a law cannot be challenged for violating a fundamental right
- 2 **Article 34** - fundamental rights may be restricted where **martial law** is in force, and Parliament may indemnify acts done for the restoration of order
- 3 **Article 35** - only **Parliament**, and not a State legislature, may make laws to give effect to certain specified fundamental rights

Suspension during a National Emergency:

- 1 **Article 358** - on a proclamation of National Emergency, the provisions of **Article 19** are suspended. After the **44th Amendment, 1978**, this applies **only** where the Emergency is declared on grounds of **war or external aggression**, and **not** on the ground of **armed rebellion**
- 2 **Article 359** - the President may suspend the **right to move any court** for the enforcement of fundamental rights. After the **44th Amendment, Articles 20 and 21 can NEVER be suspended**

MUST MASTER · THE 44TH AMENDMENT REFORMS - A CLUSTER THAT IS ASKED AS A SET

The 44th Amendment, 1978, was enacted after the 1975-77 Emergency, and its changes are a coherent package. You have now met **four** of them in this Foundation track:

- 1 **Right to property removed** from Part III - Article 19(1)(f) and Article 31 deleted, replaced by **Article 300A**
- 2 **Article 358** narrowed - Article 19 suspended only for **war or external aggression**
- 3 **Article 359** narrowed - **Articles 20 and 21 can never be suspended**
- 4 **Preventive detention** period reduced from three months to two - but **never brought into force**

Remember them together as "the anti-Emergency amendment", and you will recall all four.

CHECK YOURSELF · SESSION 9

- 1 Why is Article 32 called a Fundamental Right, and what did Ambedkar call it?
- 2 Give four differences between Article 32 and Article 226. Which is wider?
- 3 Name the five writs with their literal meanings
- 4 Distinguish prohibition from certiorari on two grounds. Which writ runs against a private person?
- 5 Which writ would an employer seek against an unheard Section 7A order? Which would you face for refusing to decide at all?
- 6 Name the four reforms of the 44th Amendment. Which two Articles can never be suspended?

11. Graded Practice - 45 Questions ★★★★★

11.1 Level 1 - Recognition

Q. 1. "The State" for the purposes of Part III is defined in

(a) Article 11 (b) Article 12 (c) Article 13 (d) Article 14

Q. 2. Which one of the following is not expressly listed in Article 12?

(a) The Government and Parliament of India (b) All local authorities (c) All other authorities within the territory of India (d) All registered companies

Q. 3. Under Article 13(3), "law" includes

(a) only Acts of Parliament (b) Acts and ordinances only (c) ordinance, order, bye-law, rule, regulation, notification, and custom or usage (d) constitutional amendments

Q. 4. Clause (4) of Article 13, providing that a constitutional amendment is not "law", was inserted by

(a) the 1st Amendment (b) the 24th Amendment (c) the 42nd Amendment (d) the 44th Amendment

Q. 5. Article 14 uses which word, thereby extending its protection to aliens?

(a) Citizen (b) Individual (c) Person (d) Inhabitant

Q. 6. How many grounds of discrimination are listed in Article 15(1)?

(a) Four (b) Five (c) Six (d) Seven

Q. 7. How many grounds are listed in Article 16(2)?

(a) Five (b) Six (c) Seven (d) Eight

Q. 8. Reservation in promotion for Scheduled Castes and Scheduled Tribes was enabled by

(a) Article 16(4) (b) Article 16(4A) (c) Article 16(4B) (d) Article 16(5)

Q. 9. The abolition of untouchability is provided by

(a) Article 15 (b) Article 17 (c) Article 23 (d) Article 25

Q. 10. How many freedoms are presently guaranteed by Article 19(1)?

(a) Five (b) Six (c) Seven (d) Eight

Q. 11. The right to property was removed from Part III by

(a) the 42nd Amendment, 1976 (b) the 44th Amendment, 1978 (c) the 24th Amendment, 1971 (d) the 1st Amendment, 1951

Q. 12. Protection against double jeopardy is contained in

(a) Article 20(1) (b) Article 20(2) (c) Article 20(3) (d) Article 22

Q. 13. Which Article prohibits the employment of children below fourteen years in factories and mines?

(a) Article 23 (b) Article 24 (c) Article 39 (d) Article 45

Q. 14. The right to education under Article 21A was inserted by

(a) the 73rd Amendment (b) the 86th Amendment (c) the 93rd Amendment (d) the 103rd Amendment

Q. 15. An arrested person must be produced before the nearest magistrate within

(a) 12 hours (b) 24 hours (c) 48 hours (d) 72 hours

Q. 16. Which writ literally means "we command"?

(a) Habeas corpus (b) Mandamus (c) Certiorari (d) Quo warranto

Q. 17. Which writ is available against a private individual?

(a) Mandamus (b) Prohibition (c) Certiorari (d) Habeas corpus

Q. 18. Dr Ambedkar described which Article as "the very soul of the Constitution and the very heart of it"?

(a) Article 14 (b) Article 21 (c) Article 32 (d) Article 368

11.2 Level 2 - Understanding

Q. 19. The test for whether a body is an "other authority" under Article 12, as refined by a seven-judge bench, is whether the body is

(a) created by a statute (b) financially, functionally and administratively dominated by or under the pervasive control of the Government (c) performing any function of public importance (d) receiving any government grant

Q. 20. The Board of Control for Cricket in India was held not to be "State" because

(a) it is a private company (b) it performs no public function (c) government control over it was not pervasive (d) it receives no government funding

Q. 21. Which one of the following best explains why EPFO is "State" under Article 12?

(a) Because it is a company owned by the Government (b) Because it is a statutory body under an Act of Parliament, under the pervasive control of the Government, exercising statutory and quasi-judicial powers (c) Because its employees are civil servants (d) Because it is mentioned in the Seventh Schedule

Q. 22. The doctrine of eclipse applies principally to

(a) post-constitutional laws (b) pre-constitutional laws (c) constitutional amendments (d) delegated legislation only

Q. 23. A worker signs an agreement accepting wages below the statutory minimum. The agreement is

(a) valid, since it was voluntary (b) valid if witnessed (c) invalid, because a fundamental right cannot be waived and economic compulsion is not consent (d) valid only for the period stated

Q. 24. The two-part test of reasonable classification under Article 14 requires

(a) intelligible differentia and rational nexus with the object (b) public interest and proportionality (c) legality and morality (d) equality of outcome and equality of opportunity

Q. 25. Which pair of cases established that arbitrariness in State action violates Article 14?

(a) *A. K. Gopalan* and *Maneka Gandhi* (b) *E. P. Royappa* and *Maneka Gandhi* (c) *Golaknath* and *Kesavananda* (d) *Ajay Hasia* and *Zee Telefilms*

Q. 26. *Indra Sawhney* (1992) laid down

(a) a 60% ceiling on reservation (b) a 50% ceiling on reservation and exclusion of the creamy layer from OBC reservation (c) reservation in promotion for all categories (d) that the creamy layer test applies identically to SCs and STs

Q. 27. The right to strike is

(a) a fundamental right under Article 19(1)(c) (b) a fundamental right under Article 19(1)(a) (c) a statutory right, subject to statutory conditions (d) a directive principle

Q. 28. Which of the following is a permissible ground of restriction on freedom of speech under Article 19(2)?

(a) Administrative convenience (b) Protection of government reputation (c) Contempt of court (d) Economic policy

Q. 29. Under Article 20(2), a departmental disciplinary proceeding following a criminal trial for the same conduct is

(a) barred as double jeopardy (b) barred only if the criminal trial ended in acquittal (c) generally not barred, since Article 20(2) concerns prosecution and punishment before a court or judicial tribunal (d) barred only if the punishment is dismissal

Q. 30. After *Maneka Gandhi*, "procedure established by law" in Article 21 means a procedure that is

(a) laid down in any valid statute (b) fair, just and reasonable (c) approved by Parliament (d) prescribed by rules

Q. 31. The two rules of natural justice are

(a) *res judicata* and *stare decisis* (b) *audi alteram partem* and *nemo iudex in causa sua* (c) *ultra vires* and *intra vires* (d) *ratio decidendi* and *obiter dicta*

Q. 32. Under the Constitution as it operates, preventive detention beyond three months requires

(a) the sanction of Parliament (b) the opinion of an Advisory Board (c) an order of the High Court (d) the consent of the detained person

Q. 33. In the *Asiad Workers* case, payment below the minimum wage was held to amount to

(a) unfair labour practice only (b) breach of contract (c) forced labour violating Article 23 (d) a violation of Article 24

Q. 34. Which of the following is the widest in scope?

(a) Article 32 (b) Article 226 (c) Article 136 (d) Article 227

Q. 35. A writ issued to quash an order already passed in breach of natural justice is

(a) prohibition (b) certiorari (c) mandamus (d) quo warranto

Q. 36. After the 44th Amendment, which Articles can never be suspended during a National Emergency?

(a) Articles 14 and 19 (b) Articles 19 and 21 (c) Articles 20 and 21 (d) Articles 21 and 22

11.3 Level 3 - Recruitment Test standard

Q. 37. Which one of the following statements is not correct?

(a) Article 29(1) is available to any section of citizens, whether majority or minority (b) Article 30(1) is available to religious and linguistic minorities (c) Article 29(2) prohibits denial of admission on grounds of religion, race, caste or language (d) Article 29 and Article 30 are both confined to minorities

Q. 38. Consider the following statements:

- 1 Fundamental Rights are justiciable while Directive Principles are not.
- 2 Articles 17, 23 and 24 are enforceable against private individuals as well as the State.
- 3 A fundamental right may be waived by the person entitled to it.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 39. Match List-I with List-II and select the correct answer using the code below:

List-I (Writ)	List-II (Function)
A. Habeas corpus	1. Ousts a person unlawfully holding public office
B. Prohibition	2. Quashes an order already made
C. Certiorari	3. Prevents a lower court exceeding jurisdiction
D. Quo warrant	4. Secures release from unlawful detention

(a) A-4 B-3 C-2 D-1 (b) A-4 B-2 C-3 D-1 (c) A-1 B-3 C-2 D-4 (d) A-4 B-3 C-1 D-2

Q. 40. Consider the following statements about Article 16:

- 1 It guarantees equality of opportunity in matters of public employment.
- 2 Article 16(3) permits Parliament to prescribe residence as a condition for certain employment.
- 3 Article 16(6), providing reservation for economically weaker sections, was inserted by the 103rd Amendment, 2019.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 41. Which one of the following pairs is not correctly matched?

(a) Article 20(3) - protection against self-incrimination (b) Article 21A - free and compulsory education for children aged six to fourteen (c) Article 22 - protection of life and personal liberty (d) Article 24 - prohibition of child labour in factories and mines

Q. 42. An APFC passes an order under Section 7A determining dues, without issuing notice to the employer and without recording reasons. Which one of the following most accurately states the position?

(a) The order is valid, since Section 7A confers the power (b) The order is liable to be quashed by certiorari under Article 226, for breach of natural justice derived from Articles 14 and 21 (c) The employer's only remedy is a departmental appeal (d) The order can be challenged only under Article 32

Q. 43. Consider the following statements:

- 1 Article 358 suspends Article 19 during a National Emergency declared on any ground.
- 2 Article 359 permits suspension of the right to move courts for enforcement of Fundamental Rights, except Articles 20 and 21.

Which of the above statements is or are correct?

(a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

Q. 44. Arrange the following in correct chronological sequence:

- 1 *Maneka Gandhi*
- 2 *A. K. Gopalan*
- 3 *K. S. Puttaswamy*
- 4 *Ajay Hasia*

(a) 2, 1, 4, 3 (b) 1, 2, 4, 3 (c) 2, 4, 1, 3 (d) 2, 1, 3, 4

Q. 45. Which one of the following statements about Article 32 is not correct?

(a) It is itself a Fundamental Right (b) It may be invoked for the enforcement of any legal right (c) The Supreme Court may issue writs under it (d) It cannot be suspended except as provided by the Constitution

12. Answers and Explanations

12.1 Level 1

Q	Ans	Explanation
1	b	Article 12. Article 13 deals with laws inconsistent with Part III
2	d	Companies are not a limb of Article 12. A company may become "State" only if it satisfies the instrumentality test - it is not listed as such
3	c	A very wide definition, covering the whole of delegated legislation and custom or usage
4	b	24th Amendment, 1971 , responding to <i>Golaknath</i>
5	c	"Person" - which is why aliens and companies are protected. Contrast Article 15 and 19, which say "citizen"
6	b	Five - religion, race, caste, sex, place of birth
7	c	Seven - the five plus descent and residence
8	b	Article 16(4A) , inserted by the 77th Amendment, 1995. 16(4B) is carry-forward of vacancies
9	b	Article 17
10	b	Six. Originally seven; 19(1)(f), the right to property, was deleted
11	b	44th Amendment, 1978. Property became a legal right under Article 300A
12	b	Article 20(2). 20(1) is ex post facto law; 20(3) is self-incrimination
13	b	Article 24 - asked in this form in 2023. Article 39 is a Directive , not a prohibition
14	b	86th Amendment, 2002
15	b	24 hours , excluding journey time
16	b	Mandamus
17	d	Habeas corpus - the only one of the five available against a private person
18	c	Article 32

12.2 Level 2

Q	Ans	Explanation
19	b	<i>Pradeep Kumar Biswas</i> (2002) - financial, functional and administrative dominance , and the control must be pervasive , not merely regulatory
20	c	<i>Zee Telefilms</i> (2005) - control was not pervasive . Note that the BCCI does perform functions of public importance, which is why (b) is wrong
21	b	Statutory body, pervasive Government control through the Ministry of Labour and Employment, and the exercise of statutory and quasi-judicial power. (a) is factually wrong - EPFO is not a company
22	b	Pre-constitutional laws. Such a law is overshadowed rather than dead, and revives if the inconsistency is removed
23	c	Fundamental rights cannot be waived (<i>Basheshar Nath</i>), and the <i>Asiad Workers</i> case treats economic compulsion as negating consent. Both doctrines point the same way
24	a	Intelligible differentia plus rational nexus with the object of the law

Q	Ans	Explanation
25	b	<i>E. P. Royappa</i> (1974) and <i>Maneka Gandhi</i> (1978). (a) is the Article 21 pair, not the Article 14 pair
26	b	50% ceiling and creamy layer exclusion for OBCs . (d) is wrong - the position for SCs and STs rests on a separate line of cases
27	c	Statutory , not fundamental. Forming a union is protected by 19(1)(c) ; striking is not
28	c	Contempt of court is one of the eight listed grounds. The others offered are not in the list, and the grounds are a closed list
29	c	Article 20(2) bars a second prosecution and punishment before a court or judicial tribunal. Departmental and recovery proceedings are different in kind - relevant to Section 14B damages
30	b	Fair, just and reasonable . This is the whole significance of <i>Maneka Gandhi</i>
31	b	Hear the other side , and no one may judge his own cause
32	b	Advisory Board . The 44th Amendment's reduction to two months was never brought into force
33	c	Forced labour under Article 23 - the reasoning being that economic compulsion negates voluntariness
34	b	Article 226 . Wider than Article 32 because it covers any legal right , not only Fundamental Rights - counter-intuitive but correct
35	b	Certiorari - curative, after the order. Prohibition is preventive, during proceedings
36	c	Articles 20 and 21 , by virtue of the 44th Amendment, 1978

12.3 Level 3

Q	Ans	Explanation
37	d	Article 29(1) is NOT confined to minorities - it protects "any section of citizens", majority or minority. Only Article 30 is a minority right. Statements (a), (b) and (c) are all correct
38	a	1 and 2 only . Statement 3 is wrong - fundamental rights cannot be waived (<i>Basheshar Nath</i>), because they are conferred in the public interest
39	a	A-4 habeas corpus release from detention; B-3 prohibition prevents excess of jurisdiction; C-2 certiorari quashes an order made; D-1 quo warranto ousts an unlawful office-holder
40	d	All three correct . 16(1) equality of opportunity, 16(3) residence by parliamentary law, 16(6) EWS by the 103rd Amendment, 2019
41	c	Article 22 is protection against arrest and detention . Protection of life and personal liberty is Article 21 . The other three pairs are correct
42	b	Certiorari under Article 226 . Two defects - no notice, breaching <i>audi alteram partem</i> , and no reasons, which is arbitrariness under Article 14. Note (d) is wrong because Article 32 is for Fundamental Rights and the natural forum is the High Court under the wider Article 226
43	b	Only statement 2 . Statement 1 is wrong - after the 44th Amendment , Article 358 applies only where the Emergency rests on war or external aggression , not armed rebellion
44	a	2, 1, 4, 3 - <i>Gopalan</i> 1950 , <i>Maneka Gandhi</i> 1978 , <i>Ajay Hasia</i> 1981 , <i>Puttaswamy</i> 2017
45	b	Article 32 is for the enforcement of Fundamental Rights only . Enforcement of any other legal right is the wider jurisdiction of the High Court under Article 226

13. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F1.3 - THE HIGHEST-VALUE REVISION BOX IN MODULE 1

ART 12 "STATE" Government and Parliament of India · Government and Legislature of each State · **all local authorities · all other authorities.** Tests: *Rajasthan SEB* 1967 statutory authority · *Sukhdev Singh* 1975 ONGC LIC IFC · *Ajay Hasia* 1981 instrumentality, by **or under** a statute · *Pradeep Kumar Biswas* 2002 **financial, functional and administrative dominance, PERVASIVE control** · *Zee Telefilms* 2005 **BCCI NOT State** · judiciary = State on its **administrative** side only

EPFO IS STATE statutory body under the EPF & MP Act 1952 · pervasive Ministry control · quasi-judicial power → bound by **Art 14** and **Art 21**, reviewable under **Art 226** by **certiorari**

ART 13 13(1) pre-constitutional · 13(2) future laws · 13(3) "law" includes ordinance, order, bye-law, rule, regulation, notification, **custom or usage** · 13(4) amendment is NOT law (**24th Amdt 1971**). **Eclipse** pre-1950 laws revive · **Severability** only the bad part falls · **Waiver IMPOSSIBLE** (*Basheshar Nath* 1959)

ART 14 "person" so aliens and companies · equality before law = **British, negative** · equal protection = **American, positive** · test = **intelligible differentia + rational nexus** · **arbitrariness** doctrine *E. P. Royappa* 1974 + *Maneka Gandhi* 1978 · exceptions **Art 361** President and Governors, **Art 105/194** privileges, diplomats

ART 15 FIVE GROUNDS religion race caste sex place of birth · **"citizen"** and **"only"** · 15(3) women and children · 15(4) **1st Amdt 1951** · 15(5) **93rd 2005** · 15(6) **EWS 103rd 2019**

ART 16 SEVEN GROUNDS the five + **descent + residence** · 16(3) residence by Parliament · 16(4) backward classes · 16(4A) promotion SC/ST **77th 1995** · 16(4B) carry forward **81st 2000** · 16(5) religious institution · 16(6) **EWS 103rd 2019** · *Indra Sawhney* 1992 = **50% ceiling + creamy layer for OBCs** · **Art 335** efficiency of administration

ART 17 untouchability abolished · **not defined** · against **private persons** · **absolute** · Protection of Civil Rights Act **1955**, SC/ST Atrocities Act **1989**

ART 18 no titles · military and academic allowed · **Bharat Ratna and Padma are NOT titles** (*Balaji Raghavan* 1996) provided not used as prefix or suffix

ART 19 SIX FREEDOMS (a) speech (b) assembly **peaceably and without arms** (c) association **incl. co-operative societies, 97th Amdt 2011** (d) movement (e) residence (g) profession. **NO (f) - property deleted by 44th Amdt 1978 → Art 300A · citizens only** · 19(2) eight grounds: sovereignty and integrity, security of State, friendly relations, public order, decency or morality, **contempt of court**, defamation, incitement · **closed list · RIGHT TO STRIKE IS STATUTORY, NOT FUNDAMENTAL**

ART 20 (1) no **ex post facto** criminal law (2) **double jeopardy** - prosecution and punishment before a court, so departmental inquiry and **14B damages** are NOT barred (3) **self-incrimination** - accused + compelled + against himself, testimonial only

ART 21 *A. K. Gopalan* 1950 narrow → **Maneka Gandhi 1978 fair, just and reasonable** · source of **natural justice: audi alteram partem** and **nemo judex in causa sua** · derived rights incl. **privacy** *K. S. Puttaswamy* **2017** nine judges, livelihood, speedy trial, legal aid, clean environment, dignity

ART 21A 86th Amdt 2002, ages **6 to 14** · same amendment changed **Art 45** to below-six care and added **Art 51A(k)**, the **11th duty · RTE Act 2009**

ART 22 grounds, counsel, **magistrate within 24 hours** · preventive detention: **Advisory Board beyond 3 months · 44th Amdt's 2 months NEVER brought into force** · 22(3) excludes **enemy aliens**

ART 23 trafficking, **begar**, forced labour · against **private persons, all persons** · 23(2) compulsory service for public purposes · **PUDR / ASIAD WORKERS 1982 - BELOW MINIMUM WAGE = FORCED LABOUR**

ART 24 below 14 in factory, mine or hazardous employment · asked 2023 · distinguish **Art 39** directive, **Art 45/21A** education · statutory ages **14 prohibition, 18 hazardous**

ART 25-28 25 profess practise propagate, **all persons**, no forced conversion · 26 denominations · 27 **TAXES not fees** · 28 **wholly** State-funded = no instruction; aided = with consent

ART 29 vs 30 29 = **ANY section of citizens**, conserve language script culture · **30 = MINORITIES only**, establish and administer institutions
ART 32 itself a **Fundamental Right** · Ambedkar "**soul and heart**" · **Art 226 is WIDER** - High Courts, **any legal right**, discretionary
FIVE WRITS **habeas corpus** have the body, **only one against a private person** · **mandamus** we command, public duty, not against President/Governor or a private person, not for discretion · **prohibition** PREVENTS, judicial and quasi-judicial only · **certiorari** QUASHES, also administrative, so **wider** · **quo warranto** by what authority, substantive public office, **any interested person**
ART 33-35 33 armed forces, **Parliament only** · 34 martial law · 35 only Parliament may legislate for certain FRs
44th AMENDMENT 1978 PACKAGE property out of Part III · **Art 358** only war or external aggression · **Art 359 - Art 20 and 21 NEVER suspended** · detention 3 → 2 months **not in force**

14. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F1.3 - PUT THIS ABOVE YOUR DESK

ART 12 Government · Legislature · **local authorities** · **OTHER AUTHORITIES** → *Pradeep Kumar Biswas* **pervasive** financial, functional, administrative control · **BCCI NOT State** · **EPFO IS State**
ART 13(3) law = rule, regulation, notification, order, bye-law, **custom** · **13(4)** amendment is not law
THREE DOCTRINES eclipse (pre-1950, revives) · severability (part falls) · **waiver impossible**
ART 14 differentia + nexus · **arbitrariness = inequality** · your four duties: **give reasons, be consistent, follow procedure, hear first**
15 = FIVE grounds · **16 = SEVEN** (adds **descent, residence**) · *Indra Sawhney* **50% + creamy layer**
ART 19 six freedoms · **no (f)** · **strike = STATUTORY**, **union = 19(1)(c)**
ART 21 *Maneka Gandhi* **fair, just and reasonable** → **audi alteram partem** + **nemo judex** · privacy *Puttaswamy* **2017**
ART 22 magistrate in **24 hours** · Advisory Board beyond **3 months** · 2 months **never in force**
ART 23 = BELOW MINIMUM WAGE IS FORCED LABOUR (*Asiad Workers* 1982) · **ART 24 = below 14, factory/mine/hazardous**
29 = any section · **30 = minorities only**
32 vs 226 · **226 IS WIDER** · writs: **habeas** private too · **prohibition prevents, certiorari cancels** · **quo warranto** any interested person
THE CHAIN - SAY IT IN A MINUTE **Art 39/41/42/43** Directives, non-justiciable → Parliament legislates using **Concurrent Entry 23 and 24** → **EPF & MP Act 1952** → **EPFO**, which is "**State**" under **Art 12** → so an APFC is bound by **Art 14** (reasons, consistency) and **Art 21** (fair hearing) → and an aggrieved employer goes to the **High Court under Art 226** for **certiorari**

ACTION · NEXT IN THE FOUNDATION TRACK

Chapter F1.4 - Directive Principles and Fundamental Duties. Short, but it is the chapter that contains **Articles 39, 41, 42 and 43** - the constitutional source of every labour and social security statute in Modules 2 and 3. After the work you have just done on Article 23 and the chain above, it will feel easy.

Before you move on, you should be able to state without looking: the **four limbs of Article 12**, why **EPFO is State**, the **two-part classification test**, the **five and seven grounds**, why there is **no Article 19(1)(f)**, what *Maneka Gandhi* changed, the *Asiad Workers* holding, and **prohibition versus certiorari**.